

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 816

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING SECTION 33-1004B, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE CAREER LADDER; AMENDING SECTION 33-1201A, IDAHO CODE, TO REVISE PROVISIONS REGARDING IDAHO PROFESSIONAL ENDORSEMENTS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 33-1004B, Idaho Code, be, and the same is hereby amended to read as follows:

33-1004B. CAREER LADDER. School districts shall receive an allocation for instructional staff and pupil service staff based on their staffs' position on the career ladder as follows:

(1) ~~Instructional~~ Except as otherwise provided in this section, instructional staff and pupil service staff who are in their first year of holding an Idaho certificate shall be placed in the first cell of the residency compensation rung and shall move one (1) cell on the residency compensation rung for each year they hold an Idaho certificate and are employed in an Idaho public school thereafter for up to three (3) years, at which point they will remain in the third cell of the residency rung until they earn a professional endorsement.

(2) Instructional staff and pupil service staff in their first year of holding a professional endorsement shall be placed in the first cell of the professional compensation rung.

(3) ~~Instructional~~ Except as otherwise provided in this section, instructional staff and pupil service staff on the professional compensation rung with four (4) years of experience shall move one (1) cell on the professional compensation rung unless they have failed to meet the professional compensation rung performance criteria for three (3) of the previous four (4) years. Instructional staff and pupil service staff on the professional compensation rung who meet the performance criteria for three (3) of the previous five (5) years, one (1) of which must be during the fourth or fifth year, shall move one (1) cell. Allocations for instructional staff and pupil service staff who do not meet the professional compensation rung performance criteria for three (3) of the previous five (5) years, one (1) of which must be during the fourth or fifth year, shall remain at the previous fiscal year allocation level. This also applies to the educational allocation.

(4) Instructional staff and pupil service staff in their first year of holding an advanced professional endorsement shall be placed in the first cell of the advanced professional compensation rung.

(5) ~~Instructional~~ Except as otherwise provided in this section, instructional staff and pupil service staff on the advanced professional compensation rung who met the performance criteria for the advanced professional rung in the previous year shall move one (1) cell on the advanced

professional compensation rung. Allocations for instructional staff and pupil service staff who do not meet the advanced professional compensation rung performance criteria shall remain at the previous fiscal year allocation level. This also applies to the additional education allocation.

(6) Career technical education instructional staff holding an occupational specialist certificate shall be placed on the career ladder as follows:

(a) Instructional staff new to or returning to working in an Idaho public school:

(i) With two (2) or three (3) years of industry experience in a field closely related to the subjects they seek to teach shall be placed in an equivalent cell to instructional staff who have been on the career ladder and met the movement requirements for one (1) year;

(ii) With four (4) or five (5) years of industry experience in a field closely related to the subjects they seek to teach shall be placed in an equivalent cell to instructional staff who have been on the career ladder and met the movement requirements for two (2) years;

(iii) With six (6) or seven (7) years of industry experience in a field closely related to the subjects they seek to teach shall be placed in an equivalent cell to instructional staff who have been on the career ladder and met the movement requirements for three (3) years; and

(iv) With eight (8) or more years of industry experience in a field closely related to the subjects they seek to teach shall be placed in an equivalent cell to instructional staff who have been on the career ladder and met the movement requirements for four (4) years; and

(b) Existing career technical education instructional staff on the residency compensation rung shall have their placement updated consistent with the provisions of paragraph (a) of this subsection if the update would result in a rung higher than their current placement.

(7) (a) Career technical education instructional staff holding an occupational specialist certificate who are placed on the career ladder pursuant to the provisions of subsection (6) of this section and initially placed on the professional compensation rung shall move cells on the professional compensation rung as follows:

(i) Those with one (1) year of industry experience shall move one (1) cell on the professional compensation rung unless they have failed to meet the professional compensation rung performance criteria for the first year;

(ii) Those with two (2) years of industry experience shall move one (1) cell on the professional compensation rung unless they have failed to meet the professional compensation rung performance criteria in either of the two (2) years;

(iii) Those with three (3) years of industry experience shall move one (1) cell on the professional compensation rung unless they have failed to meet the professional compensation rung performance criteria for two (2) of the previous three (3) years; and

(iv) Those with four (4) or more years of industry experience shall move according to the provisions of subsection (3) of this section.

(b) Allocations for such instructional staff who do not meet the professional compensation rung performance criteria in any year shall remain at the previous fiscal year allocation level.

~~(7)~~ (8) Instructional staff or pupil service staff entering their first year on the career ladder, but with prior certificated instructional, pupil service, administrative, or equivalent elementary or secondary school experience, including in an accredited private or parochial school, shall be placed on the career ladder as follows:

(a) Instructional staff and pupil service staff who have been awarded a professional endorsement shall be placed as follows:

(i) Those with four (4) years of certificated experience and documentation from the hiring school district or charter school administrator, attesting the individual has provided evidence that the individual has met the professional compensation rung performance criteria in two (2) of the previous four (4) years, shall be placed in an equivalent cell on the career ladder to instructional staff or pupil service staff who have met the movement criteria for four (4) years; or

(ii) Those with five (5) or more years of certificated experience and documentation from the hiring school district or charter school administrator, attesting the individual has provided evidence that the individual has met the professional compensation rung performance criteria in three (3) of the previous five (5) years, with one (1) year being the fourth or fifth year, shall be placed in an equivalent cell on the career ladder to instructional staff or pupil service staff who have met the movement criteria for the equivalent number of years as they have verified experience.

(b) Instructional staff and pupil service staff who have been awarded an advanced professional endorsement with nine (9) or more years of certificated experience and documentation from the hiring school district or charter school administrator, attesting the individual has provided evidence that the individual has met the professional compensation rung performance criteria in three (3) of the previous five (5) years, with one (1) year being the fourth or fifth year, shall be placed in an equivalent cell on the career ladder to instructional staff or pupil service staff who have met the movement criteria for the equivalent number of years as they have verified experience.

(9) (a) Pupil service staff new to or returning to working in an Idaho public school who are certified in and have industry experience in a field closely related to the position in which they seek to be employed, and which position is eligible for certificated pupil service staff, shall be placed on the career ladder as follows:

(i) Those with two (2) or three (3) years of industry experience in a field closely related to the position in which they seek to work shall be placed in an equivalent cell to pupil service staff who have been on the career ladder and met the movement requirements for one (1) year;

(ii) Those with four (4) or five (5) years of industry experience in a field closely related to the position in which they seek to work shall be placed in an equivalent cell to pupil service staff who have been on the career ladder and met the movement requirements for two (2) years;

(iii) Those with six (6) or seven (7) years of industry experience in a field closely related to the position in which they seek to work shall be placed in an equivalent cell to pupil service staff who have been on the career ladder and met the movement requirements for three (3) years; and

(iv) Those with eight (8) or more years of industry experience in a field closely related to the position in which they seek to work shall be placed in an equivalent cell to pupil service staff who have been on the career ladder and met the movement requirements for four (4) years; and

(b) Existing pupil service staff on the residency compensation rung shall have their placement updated consistent with the provisions of paragraph (a) of this subsection if the update would result in a rung higher than their current placement.

(10) (a) Pupil service staff holding a pupil service staff certificate who are placed on the career ladder pursuant to subsection (9) of this section and initially placed on the professional compensation rung shall move cells on the professional compensation rung as follows:

(i) Those with one (1) year of industry experience shall move one (1) cell on the professional compensation rung unless they have failed to meet the performance criteria for the first year;

(ii) Those with two (2) years of industry experience shall move one (1) cell on the professional compensation rung unless they have failed to meet the professional compensation rung performance criteria in either of the two (2) years;

(iii) Those with three (3) years of industry experience shall move one (1) cell on the professional compensation rung unless they have failed to meet the professional compensation rung performance criteria for two (2) of the previous three (3) years; and

(iv) Those with four (4) or more years of industry experience shall move according to the provisions of subsection (3) of this section.

(b) Allocations for such pupil service staff who do not meet the professional compensation rung performance criteria in any year shall remain at the previous fiscal year allocation level.

(11) When determining the placement of instructional staff, pupil service staff, or career technical education instructional staff new to or returning to working in an Idaho public school, all experience calculated under subsections (6), (8), and (9) of this section shall be combined.

~~(8)~~ (12) In addition to the allocation amount specified for the applicable cell on the career ladder, school districts shall receive an additional allocation amount for career technical education instructional staff holding an occupational specialist certificate in the area for which they are teaching in the amount of three thousand dollars (\$3,000), which shall be

designated for career technical education staff and included as part of their salary.

~~(9)~~ (13) In addition to the allocation amount specified for the applicable cell on the career ladder, school districts shall receive an additional allocation amount for instructional staff and pupil service staff holding a professional or an advanced professional endorsement who have acquired additional education and meet the professional or advanced professional compensation rung performance criteria. In determining the additional education allocation amount, only transcribed credits and degrees on file with the teacher certification office of the state department of education, earned at an institution of higher education accredited by a body recognized by the state board of education or credits earned through an internship or work experience approved by the state board of education, shall be allowed. All credits and degrees earned must be in a relevant pedagogy or content area as determined by the state department of education. Additional education allocation amounts are not cumulative. Instructional staff whose initial certificate is an occupational specialist certificate shall be treated as BA degree-prepared instructional staff. Credits earned by such occupational specialist instructional staff after initial certification shall be credited toward the education allocation. Additional education allocations are:

(a) For instructional staff and pupil service staff holding a professional or an advanced professional endorsement, a baccalaureate degree and twenty-four (24) or more credits, two thousand dollars (\$2,000) per fiscal year.

(b) For instructional staff and pupil service staff holding a professional or an advanced professional endorsement and a master's degree, three thousand five hundred dollars (\$3,500) per fiscal year.

(c) Effective July 1, 2021, the allocation shall be:

Base					
Allocation	1	2	3	4	5
Residency	\$40,369	\$40,990	\$41,611		
Professional	\$42,991	\$44,836	\$46,681	\$48,526	\$50,370
Advanced Professional	\$52,734	\$53,207			

(d) Effective July 1, 2022, the allocation shall be:

Base					
Allocation	1	2	3	4	5
Residency	\$40,742	\$41,486	\$42,231		
Professional	\$43,488	\$45,302	\$47,116	\$48,930	\$50,743
Advanced Professional	\$53,478	\$54,442	\$55,389		

(e) Effective July 1, 2023, the allocation shall be:

Base					
Allocation	1	2	3	4	5
Residency	\$41,118	\$41,988	\$42,860		

1	Professional	\$43,990	\$45,773	\$47,555	\$49,337	\$51,119
2	Advanced					
3	Professional	\$54,233	\$55,705	\$57,165	\$58,613	

4 (f) Effective July 1, 2024, the allocation shall be:

5	Base					
6	Allocation	1	2	3	4	5
7	Residency	\$41,500	\$42,500	\$43,500		
8	Professional	\$44,500	\$46,250	\$48,000	\$49,750	\$51,500
9	Advanced					
10	Professional	\$55,000	\$57,000	\$59,000	\$61,000	\$63,000

11 ~~(10)~~ (14) Effective July 1, 2025, the educator salary-based apportionment program compensation rung cell amounts shall be adjusted by an amount equivalent to the salary-based apportionment adjustment for administrative and classified staff positions.

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15 ~~(11)~~ (15) A review of a sample of evaluations completed by administrators shall be conducted annually to verify such evaluations are being conducted with fidelity to the state framework for teaching evaluation, including each domain and identification of which domain or domains the administrator is focusing on for the instructional staff or pupil service staff member being evaluated, as outlined in administrative rule. The review shall be completed prior to November 1 of each year. The state board of education shall randomly select a sample of administrators throughout the state. A portion of such administrators' instructional staff and pupil service staff employee evaluations shall be independently reviewed. The ratio of instructional staff evaluations to pupil service staff evaluations shall be equal to the ratio of the statewide instructional staff salary allowance to pupil service staff salary allowance. The state board of education, with input from the Idaho-approved teacher preparation programs and the state department of education, shall identify individuals and a process to conduct the reviews. Administrator certificate holders shall be required to participate in ongoing evaluation training pursuant to section 33-1204, Idaho Code. The state board of education shall report annually the findings of such reviews to the senate education committee, the house of representatives education committee, the state board of education and the deans of Idaho's approved teacher preparation programs. The state board of education shall promulgate rules implementing the provisions of this subsection.

37 ~~(12)~~ (16) School districts shall submit annually to the state the data necessary to determine if an instructional staff or pupil service staff member has met the performance criteria for movement on the applicable compensation rung. Such data shall include the individuals' performance on each of the performance criteria as defined in section 33-1001, Idaho Code, including the percentage of students meeting their measurable student achievement and student success indicator targets. The department of education shall calculate whether or not instructional staff and pupil service staff have met the compensation rung performance criteria based on the data submitted during the previous five (5) years. Individually identifiable performance evaluation ratings submitted to the state remain part of the employee's personnel record and are exempt from public disclosure pursuant to section 74-106, Idaho Code.

SECTION 2. That Section 33-1201A, Idaho Code, be, and the same is hereby amended to read as follows:

33-1201A. IDAHO PROFESSIONAL ENDORSEMENT -- ELIGIBILITY. (1) Any instructional staff employee or any pupil service staff employee will receive mentoring as outlined in such employee's individualized professional learning plan during the initial three (3) years of holding such certificate. Upon holding a certificate for three (3) years, any such instructional staff or pupil service staff employee may apply for an Idaho professional endorsement. Upon holding a professional endorsement for five (5) years or more, any such instructional staff or pupil service staff employee may apply for an Idaho advanced professional endorsement. Individuals who hold an instructional staff certificate and a pupil service staff certificate shall have their experience based on the overall years of experience if held consecutively or the certificate they have held the longest if dually certificated.

(2) To be eligible for an Idaho professional endorsement, the instructional staff or pupil service staff employee must:

(a) Have held a certificate and been employed in a public school for at least three (3) years or have completed a state board of education-approved interim certificate of three (3) years or longer;

(b) Show they met the professional compensation rung performance criteria for two (2) of the three (3) previous years or the third year;

(c) Have a written recommendation from the employing school district; and

(d) Have an annual individualized professional learning plan developed in conjunction with the employee's school district supervisor.

Instructional staff employees may provide additional evidence demonstrating effective teaching that may be considered in exceptional cases for purposes of determining proficiency and student achievement in the event required standards for professional endorsement are not met. Pupil service staff employees may provide additional evidence demonstrating effective student achievement or success that may be considered in exceptional cases for purposes of determining proficiency and student achievement or success in the event required standards for professional endorsement are not met.

(3) To be eligible for an Idaho advanced professional endorsement, the instructional staff or pupil service staff employee must:

(a) Have held a renewable certificate and been employed in a public school for at least eight (8) years or more or have completed a state board of education-approved interim certificate of three (3) years or longer and held a renewable certificate and been employed in a public school for five (5) years or more;

(b) Show they met the professional compensation rung performance criteria for four (4) of the five (5) previous years or the third, fourth, and fifth year;

(c) During three (3) of the previous five (5) years, have served in an additional building or district leadership role in an Idaho public school, including but not limited to:

(i) Instructional specialist or instructional coach;

(ii) Mentor;

(iii) Curriculum or assessment committee member;

- (iv) Team or committee leadership position;
- (v) Data coach; or
- (vi) Other leadership positions identified by the school district;
- (d) Have a written recommendation from the employing school district;
- (e) Have an annual individualized professional learning plan developed in conjunction with the employee's supervisor and a self-evaluation; and
- (f) (i) Effective July 1, 2020, through June 30, 2021, show they have met the advanced professional compensation rung performance criteria for three (3) of the five (5) previous years or the fifth year;
- (ii) Effective July 1, 2021, through June 30, 2022, show they have met the advanced professional compensation rung performance criteria for three (3) of the five (5) previous years or the fourth and fifth year; or
- (iii) Effective July 1, 2022, show they have met the advanced professional compensation rung performance criteria for three (3) of the five (5) previous years.

Instructional staff employees may provide additional evidence demonstrating effective teaching that may be considered in exceptional cases for purposes of determining proficiency and student achievement in the event required standards for the advanced professional endorsement are not met. Pupil service staff employees may provide additional evidence demonstrating effective student achievement or success that may be considered in exceptional cases for purposes of determining proficiency and student achievement or success in the event required standards for the advanced professional endorsement are not met.

(4) Instructional staff and pupil service staff who have been certified in another state shall be eligible for the professional endorsement if they:

- (a) Have a written recommendation from the employing school district;
- (b) Have worked in a certificated position in a compact-member state other than Idaho pursuant to section 33-4104, Idaho Code; and
- (c) Would have been eligible to work in a certificated position in an Idaho public school based on that certification for three (3) to eight (8) years.

(5) Instructional staff and pupil service staff who have been certified in another state shall be eligible for the advanced professional endorsement if they:

- (a) Have a written recommendation from the employing school district;
- (b) Have worked in a certificated position in a compact-member state other than Idaho pursuant to section 33-4104, Idaho Code; and
- (c) Would have been eligible to work in a certificated position in an Idaho public school based on that certification for nine (9) years or more.

(6) Instructional staff and pupil service staff who have worked in an accredited private school and maintained their instructional or pupil service staff certification may use their years of private school work experience to meet the years of experience requirements for the professional and advanced professional endorsement. Such staff may provide additional

1 evidence demonstrating effective teaching that may be considered in excep-
 2 tional cases for purposes of determining proficiency and student achieve-
 3 ment requirements for professional and advanced professional eligibility
 4 criteria.

5 (7) Pupil service staff and career technical education instructional
 6 staff may use the years of industry experience, as calculated pursuant to
 7 section 33-1004B(6) and (9), Idaho Code, to meet the years of experience
 8 requirements for the professional and advanced professional endorsements.
 9 Such staff may provide additional evidence demonstrating effective teaching
 10 that may be considered in exceptional cases for purposes of determining pro-
 11 ficiency and student achievement requirements for professional and advanced
 12 professional eligibility criteria.

13 ~~(7)~~ (8) Individuals holding a professional endorsement or an advanced
 14 professional endorsement will be annually evaluated in at least two (2) do-
 15 mains in the state evaluation framework approved by the state board of educa-
 16 tion. All other instructional or pupil service staff employees must be eval-
 17 uated across all domains in the evaluation framework. Ratings in the domains
 18 described in section 33-1001(20)(b), Idaho Code, are required as part of the
 19 advanced professional compensation rung performance criteria.

20 ~~(8)~~ (9) The state board of education shall promulgate rules implement-
 21 ing the provisions of this section.

22 ~~(9)~~ (10) For the purposes of this section:

23 (a) "Certificate" means an Idaho instructional certificate, pupil
 24 service staff certificate, or out-of-state educator certificate that
 25 meets the requirements for reciprocity under rules promulgated by the
 26 state board of education;

27 (b) In conjunction with the Idaho evaluation framework, "individual-
 28 ized professional learning plan" means an individualized professional
 29 development plan based on the Idaho framework for teaching evaluation
 30 and includes, at a minimum, identified interventions based on the indi-
 31 vidual's strengths and areas of needed growth, how the individual will
 32 set student achievement and growth goals, and areas of identified pro-
 33 fessional development and mentoring that target continuous improvement
 34 in professional areas, future student achievement, and school building
 35 or district culture;

36 (c) "Instructional staff" means those involved in the direct instruc-
 37 tion of a student or group of students and who hold a certificate issued
 38 under section 33-1201, Idaho Code;

39 (d) "Pupil service staff" means those who provide services to students
 40 but are not involved in direct instruction of those students and who
 41 hold a certificate issued under section 33-1201, Idaho Code; and

42 (e) "School district" means a school district or a public charter
 43 school.

44 SECTION 3. An emergency existing therefor, which emergency is hereby
 45 declared to exist, this act shall be in full force and effect on and after
 46 July 1, 2026.